**SUPERIOR COURT OF CALIFORNIA**
**COUNTY OF VENTURA**

**Tentative Ruling**

---

**2025CUBT037716: JENNA MEIER, et al. vs GLOBAL INTEGRITY REALTY CORPORATION**
**08/26/2026 in Department 40**
**Demurrer**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

---

The Court intends to sustain the demurrer with leave to amend as to the second (negligence) and fourth (invasion of privacy) and fifth (false advertising) causes of action; sustain the demurrer without leave to amend as to sixth (fraud) cause of action; and to overrule the demurrer as to the third (UCL) cause of action.

## I. Background

On May 19, 2026, plaintiffs Jenna Meier, Scott Meier, Alison Roper, David D'Antoni and Sean Prager (each individually a "Plaintiff" and collectively, the "Plaintiffs") filed the operative Second Amended Complaint ("SAC") against defendant Global Integrity Realty Corporation ("Defendant) for (1) violations of the Investigative Consumer Reporting Agencies Act ("ICRAA") – Cal. Civ. Code §§ 1786, et seq., (2) negligence, (3) violations of Unfair Competition Law ("UCL") – Cal. Bus. & Prof. Code §§ 17200, et seq.; (4) invasion of privacy; (5) false advertisement; and (6) fraud. The SAC alleges that Plaintiffs are tenants in apartment complexes operated by Defendant. In each instance, Plaintiff tendered the $30 application processing fee and authorized the apartment complex to obtain an investigative credit and background report. Defendant's application form failed to include a manifest place for applicants to indicate (by checking a box) that they wanted to receive a free copy of the report obtained in connection with the vetting process, as required by the ICRAA. The statute provides for statutory fees for the omission. Plaintiffs have alleged additional claims based on the same transaction.

Defendant demurs on the grounds that the allegations in the SAC are sufficient to state a cause of action for violation of the ICRAA, but, without additional facts, insufficient to sustain the remaining causes of action. Plaintiffs oppose.

## II. Legal Standard

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The sole issue on demurrer is whether the facts pleaded, if true, state a valid cause of action – *i.e.*, whether the complaint pleads facts that would entitle the plaintiff to relief. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 339.) It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.)

A general demurrer admits the truth of all factual, material allegations properly pled in the challenged pleading, regardless of possible difficulties of proof. (*Blank*, *supra*, 39 Cal.3d at p. 318.) "The plaintiff need not plead evidentiary facts supporting the allegation of ultimate fact. A pleading is adequate so long as it apprises the defendant of the factual basis for the plaintiff's claim." (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1469-1470.) Thus, no matter how unlikely or improbable, plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) Nevertheless, this rule does not apply to allegations expressing mere conclusions of law, or allegations contradicted by the exhibits to the complaint or by matters of which judicial notice may be taken. (*Vance v. Villa Park Mobilehome Estates* (1995) 36 Cal.App.4th 698, 709.)

## III. Application

Defendant demurs to the second (negligence), third (UCL), fourth (invasion of privacy), fifth (false advertising) and sixth (fraud) causes of action. Each is analyzed below.

### A. 2nd Cause of Action – Negligence (Sustained with leave to amend)

To state a cause of action for negligence, it is necessary to plead ultimate facts supporting each of the following essential elements: duty, breach, causation and damages. (*Romero v. Los Angeles Rams* (2023) 91 Cal.App.5th 562, 567.) Here, Plaintiffs allege that Defendant is negligent for breaching a duty "as property managers, and as fiduciaries, who were entrusted with personal, sensitive and private information about Plaintiffs to protect the private information that Defendants demanded from Plaintiffs when they were seeking housing at Defendants' apartment complex." (SAC ¶ 37.) Plaintiff further allege that they suffered "actual damages and injuries" and "emotional distress" as a result of Defendant's failure to safeguard their private financial information. (SAC ¶¶ 40, 42.) Finally, Plaintiffs allege that breach is presumed under Evidence Code section 669 because Defendant's failure to safeguard personal financial information is the subject of a statute designed to protect persons like Plaintiffs from the kind of harm they experienced. (SAC ¶ 41.)

Defendant demurs to the negligence cause of action on two bases.

First, Defendant contends that the negligence cause of action is duplicative of the first cause of action stating an actual violation of the ICRAA. The Court acknowledges that demurrers have been sustained as to duplicative causes of action. (See, e.g., *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290; *Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135). Duplication or redundancy is not, however, necessarily a legal basis for a demurrer. (See *R.L. v. Merced City School District* (2025) 114 Cal.App.5th 89, 119.) Therefore, the demurrer is overruled on this ground.

Second, Defendant argues that the negligence cause of action fails because the SAC fails to plead facts that demonstrate actual damages. Although conclusory averments regarding damages are included in the operative pleading (see SAC ¶¶ 40, 42), Plaintiffs averred that they "are seeking damages, including actual damages, statutory damages and punitive damages" because Defendant "did not provide a means by which the Plaintiffs could indicate that he or she wished to receive a copy of any report prepared in connection with the application." (SAC ¶¶ 20-22.) In other words, each Plaintiff is entitled to a free credit report, Defendant deprived them of that right, and as such they have suffered harm. The SAC fails to allege, however, *how* or *why* Plaintiffs have suffered cognizable harm.

Plaintiffs appear to suggest that the doctrine of *negligence per se* absolves them of the obligation to show the existence of actual damages. It does not. Evidence Code section 669 codifies a presumption regarding duty and breach; not causation. As such, Plaintiffs are still required to connect the dots between the failure to provide them with a free credit report and some cognizable harm that was allegedly suffered. (See, *e.g., Taulbee v. EJ Distribution Corp.* (2019) 35 Cal.App.5th 590, 596-597; *Nevarrez v. San Marino Skilled Nursing & Wellness Centre* (2013) 221 Cal.App.4th 102, 124-125; *Victor v. Hedges* (1999) 77 Cal.App.4th 229, 238; *Morris v. Horton* (1994) 22 Cal.App.4th 968, 972; *Little v. Community Bank* (1991) 234 Cal.App.3d 355, 359; *Atkins v. Bisigier* (1971) 16 Cal.App.3d 414, 421.)

Since the statutory damages arise from the statute, and no monetary harm is alleged for the negligence cause of action, the question posted by the demurrer is whether "emotional distress" is recoverable on the facts pleaded. The answer is "no." The leading case on this subject is *Erlich v. Menezes* (1999) 21 Cal.4th 543, which reversed an award of damages for emotional distress based on breach of a contract to build a house. The Court there held that emotional distress damages are not available in every case in which there is an independent cause of action founded upon negligence, and that such damages are not recoverable in a dispute amounting to a breach of contract except where the breach also violates a duty independent of the contract. (*Ibid*. at pp. 551-552 ["the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm"].) This rule has been applied in several kinds of cases. (See, e.g., *Butler-Rupp v. Lourdeaux* (2005) 134 Cal.App.4th 1220, 1228 ["in the absence of physical injury, the courts have never allowed recovery of damages for emotional distress arising solely from property damage or economic injury to the plaintiff"]; *Bishop v. Hyundai Motor America* (1996) 44 Cal.App.4th 750, 756 [violation of UCC did not give rise to "emotional distress" damages].)

Some statutes provide for the recovery of "actual damages" – which ordinarily includes emotional distress. For example, violations of the habitability statutes and violations of certain rent control enactments allow emotional distress damages. (See, e.g., *McNairy v. C.K. Realty* (2007) 150 Cal.App.4th 1500, 1507; *Beeman v. Burling* (1990) 216 Cal.App.3d 1586, 1601). Although Civil Code section 1786.50(a)(1) also provides for the recovery of "actual damages"—which might imply a right to recover emotional distress damages—the Court of Appeal clarified that since the statute already provides for a liquidated damage of $10,000 without actual damages, the non-statutory damages (monetary, emotional distress, etc) must exceed $10,000 in order to state a different cause of action. (See *Bernuy v. Bridge Property Management Co.*

(2023) 89 Cal.App.5th 1174; *cf Parsonage v. Wal-Mart Associates, Inc.* (2026) 118 Cal.App.5th 399, 416 n.10.)

Here, Plaintiff has not alleged facts that will show either non-economic monetary losses or a basis for severe emotional distress (akin to NIED) sufficient to breach the $10,000 threshold. As such, the demurrer to this cause of action is sustained with leave to amend.

**B. 3rd Cause of Action – Unlawful Competition (Overruled)**

The UCL (Bus. & Prof. Code §§ 17200, *et seq*.) prohibits any unlawful, unfair or fraudulent business act or practice. Its reach is expansive, embracing virtually anything that can properly be called a business practice, by borrowing violations of other laws and making them independently actionable. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180; *Puentes v. Wells Fargo, Inc.* (2008) 160 Cal.App.4th 638, 643-644.) The statute's reach is so expansive in part because it also has inherent limitations for standing and remedies, thereby reducing the risk it will be abused by litigants. For example, in a garden-variety business tort action, the UCL offers little substance since it does not provide for any award of damages or attorney fees. When proceeding under the "unlawful" prong, it is necessary to specify the section of the law which has been violated. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616) Otherwise, general notice pleading controls.

Here, Plaintiff alleges that Defendant's practice of collecting $30 for the background report and then failing to provide a copy of said report to the applicants violates Civil Code section 1786.16 – which generally provides that "the person procuring the report or causing it to be prepared agrees to provide a copy of the report to the subject of the investigation" by providing "a means by which the consumer may indicate on a written form, by means of a box to check, that the consumer wishes to receive a copy of any report that is prepared." Distilled to its simplest base, Plaintiffs were charged $30 and have a legal right to receive a "free" copy of their credit report for that $30. The SAC alleges that Plaintiffs did not receive the report. Assuming these facts to be true as required for present purposes, Plaintiffs have stated a UCL claim. Therefore, the demurrer to this cause of action is overruled.

**C. 4th Cause of Action – Invasion of Privacy (Sustained with Leave to Amend)**

The ICRAA does not preempt claims for invasion of privacy. (Civil Code §1786.52.) To establish a claim for invasion of privacy based on intrusion into private matters (as herein), the plaintiff must allege: (1) a legally protected privacy interest as determined by established social norms or law; (2) an objectively reasonable expectation of privacy under the circumstances as determined by customs, practices and physical settings surrounding the activities; and (3) an intentional intrusion into some zone of physical or sensory privacy which is so serious or offensive in nature, scope, degree and/or impact as to constitute an egregious breach of the social norms. (See *Hernandez v. Hillsides, Inc.* (2009) 47 Cal.4th 272, 287; *Moreno v. Hanford Sentinel, Inc.* (2009) 172 Cal.App.4th 1125, 1130-1131.)

Here, Plaintiffs contend that Defendant may be liable for invasion of privacy by securing credit reports without complying with the statutory requirements of providing them with a free copy. Plaintiffs are conflating the different purposes behind the ICRAA.

The primary purpose behind the statute is "to require that investigative consumer reporting agencies adopt reasonable procedures for meeting the needs of information relating to the hiring of dwelling units in a manner which is fair and equitable to the consumer, with regard to the confidentiality, accuracy, relevancy, and proper utilization of the information." (Civ. Code § 1786, subdiv. (f).) Provided that the landlord not misuse the right of access to investigative reports, or the information contained therein, its use of a report to vet prospective tenants is presumptively fair and equitable. Plaintiff does not allege otherwise. Moreover, there are no averments accusing defendant of misusing, or mishandling, any investigative reports.

The only issue alleged in the SAC is Defendant's failure to provide the tenants a copy of the reports. Why give the tenant a copy? Because the Legislature has declared that "consumers are best protected [from identity theft] if they are automatically given copies of any investigative consumer reports made on them." (Civ. Code § 1786, subdiv. (e).) If there are any identity theft concerns revealed through the report, the tenant's sole remedy is to contact the reporting agency and open an investigation.

Defendant's failure to deliver a free copy of the reports to Plaintiffs has conceivably interfered with their right to actively protect themselves from identity theft, but that is not an invasion of privacy. The tenants do not have an "objectively reasonable expectation of privacy" because they filled out an application for tenancy which specifically informed them that a consumer report would be obtained. Plaintiffs, by their own admission, authorized Defendant to enter into "some zone of physical or sensory privacy" to learn about their background. Failing to give them a copy of the report amounts to no more than a breach of the statute, not an invasion of privacy. (See *Hiemstra v. TRW, Inc.* (1987) 195 Cal.App.3d 1629, 1631-1632.)

The Court notes that the SAC makes vague references to improper "dissemination" of the reports. (See SAC ¶¶ 39, 40, 56, 57.) These references appear to contemplate the credit agency's dissemination of the report to Defendant, which Plaintiffs expressly authorized. (See SAC ¶¶ 39, 40, 56.) To the extent that the allegations in paragraph 57 pertain to dissemination to third parties, Plaintiffs did not allege any facts to support this theory of invasion of privacy in the SAC nor argue this basis for overruling the demurrer in their Opposition. Since such facts were not alleged or argued here (or the FAC), any amendments alleging such facts may be subject to the sham pleading doctrine. With the foregoing in mind, the Court grants the demurrer to this cause of action with leave to amend.

### D. 5th Cause of Action – False Advertising (Sustained with leave to amend)

The fair advertising law (Bus. & Prof. § 17500) covers representations made "in any newspaper or other publication, or any advertising device, or by public outcry or proclamation, or in any other manner or means whatever, including over the Internet." Advertising in the context of a Business and Professions Code section 17500 claim has typically been construed to mean widespread promotional activities directed to the public at large, rather than face-to-face representations. (See *Bank of the West v. Superior Court* (1992) 2 Cal.4th 1254, 1277 n.9.) While some face-to-face exchanges can qualify as advertisement where the speaker is soliciting a transaction from the listener (see *People v. Superior Court* (1973) 9 Cal.3d 283, 287, and *Feather River Trailer Sales, Inc. v. Sillas* (1979) 96 Cal.App.3d 234, 248), Plaintiffs have not alleged any facts that might bring their claim within the parameters of these direct-solicitation cases.

In addition, there is a requirement to plead facts showing that the aforementioned advertisement is likely to deceive members of the public. In assessing the likelihood of deception, the challenged advertisement is typically viewed through the eyes of the reasonable consumer—that is, the ordinary consumer acting reasonably under the circumstances. The primary evidence of likelihood of deception is the challenged advertisement itself. (See *Nationwide Biweekly Administration, Inc. v. Superior Court* (2020) 9 Cal.5th 279, 309; *People v. Johnson & Johnson* (2022) 77 Cal.App.5th 295, 317-319.)

Here, Plaintiffs allege that "Defendants made statements and representations to Plaintiffs in application materials and related communications." (See SAC ¶ 60.) It is not clear from the SAC whether these alleged statements constitute "advertisements."

Even assuming for present purposes that these statements qualify as an advertisement, Plaintiffs do not state what they were misled by, making it impossible to assess the concerns about likelihood of deception to the reasonable consumer. Since omissions are not actionable under the fair advertising law unless they cause a consumer to enter into a transaction they would not have done so otherwise, claiming that Defendant failed to mention that the reports would be provided cannot serve as the predicate. (See, *e.g., Byars v. SCME Mortgage Bankers, Inc.* (2003) 109 Cal.App.4th 1134, 1148-1149 [failure to provide rate sheet not actionable]; *Plotkin v. Sajahtera, Inc.* (2003) 106 Cal.App.4th 953, 966 [failure to warn about valet charges not actionable]; *Searle v. Wyndham Int'l, Inc.* (2002) 102 Cal.App.4th 1327, 1335 [failure to explain transient tax not actionable].)

For the foregoing reasons, the Court sustains the demurrer to this cause of action with leave to amend.

**E. 6th Cause of Action – Fraud by Misrepresentation and/or Concealment (Sustained without leave to amend)**

Fraud must be plead with particularity rather than with general or conclusory allegations. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.) This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were made. To state the claim against an entity, the plaintiff must also include allegations regarding the speaker's authority to bind the entity. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) For misrepresentation, plaintiff must allege with particularity: (1) the defendant represented to the plaintiff that an important fact was true; (2) that representation was false; (3) the defendant knew that the representation was false when the defendant made it, or the defendant made the representation recklessly and without regard for its truth; (4) the defendant intended that the plaintiff rely on the representation; (5) the plaintiff reasonably relied on the representation; (6) the plaintiff was harmed; and, (7) the plaintiff's reliance on the defendant's representation was a substantial factor in causing that harm to the plaintiff. For concealment, plaintiff must allege with particularity: (1) the defendant actively concealed or suppressed a material fact; (2) the defendant must have been under a duty to disclose the fact to the plaintiff; (3) the concealment/suppression was done with the intent to defraud the plaintiff; (4) plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1245-1246.)

This cause of action is anchored by the following two groups of fraud:

> Defendants made knowingly fraudulent representations that falsely claimed Plaintiffs would be provided all required disclosures under the ICRAA, and given the ability to request/obtain copies of any investigative reports Defendants procured about them during Defendants' application and screening processes. Defendants reiterated those representations after this case was filed by making knowingly false and fraudulent claims that Defendants supposedly provided all required disclosures under the ICRAA, and gave Plaintiffs the ability to request/obtain copies of the investigative reports that Defendants procured about them.

(See SAC ¶ 66.)

Although these averments do not clearly denote whether Plaintiffs are alleging misrepresentation or concealment, Plaintiffs essentially plead fraud in two ways: the first being affirmative false representations about their ability to secure a copy of their credit reports when first applying for the tenancy; and the second being during the course of litigation when defense counsel "falsely" claimed that Plaintiffs had been provided the required "opt in" box on their forms.

The misrepresentation made during the course of litigation is not actionable because (1) the litigation privilege arguably immunizes a claim of merit by one's adversary, (2) there are no facts showing how Plaintiffs relied to their detriment on a false claim made during the litigation. (See SAC 18:25-28 ["Plaintiffs reasonably relied on Defendants fraudulent representations and fabricated evidence to initially contemplate dismissing this case.") Plaintiffs did not rely on Defendant's claimed merit and threats of malicious prosecution, and in fact continue to press forward with litigation notwithstanding the allegedly false representations that Defendant is not liable.

As to the claims made during the application process, there are no averments showing that anyone associated with the apartment complex told Plaintiffs anything about their options for securing a copy of their background check. Plaintiffs have not alleged that had they known they were not going to receive a copy of their background reports, they would have selected a different apartment complex. Plaintiffs have also failed to allege reasonable reliance, which requires a showing that Plaintiffs actually relied to their detriment on the information (or lack thereof), and that the information "was material in the sense that a reasonable person would find it important in determining how he or she would act." (*Hoffman v. 162 North Wolfe LLC* (2014) 228 Cal.App.4th 1178, 1193-1194.) Plaintiffs have not included any facts from which to test this element, except the barren contention that "Plaintiffs reasonably and justifiably relied on Defendants misrepresentations and fraudulent omissions by proceeding with Defendants application and tenant screening processes, paying fees and submitting personal information, believing that Defendants intended comply with the laws of this state." (See SAC ¶ 73.) Plaintiffs did not apply to reside at the community for the singular purpose of securing a free credit report. They applied to become tenants and did in fact become tenants. They did not "rely to their detriment" in applying because there was no detriment in having secured the lease they wanted, and only theoretical detriment if their credit reports have incorrect information on them which they can no longer cure (which is not alleged by any of the Plaintiffs).

The burden is on Plaintiffs to show in what manner Plaintiffs can amend the complaint, and how that amendment will change the legal effect of the pleading. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Mohler v. County of Santa Clara* (2023) 92 Cal.App.5th 418, 428; *Moore v. Centrelake Med. Group, Inc.* (2022) 83 Cal.App.5th 515, 537.) Plaintiffs offer no glimpse into how they would amend this intentional tort cause of action, with its concomitant particularity, to show actual and justifiable reliance on a representation, or concealment, by or from someone in the control group of the entity (or at least ratified by someone at that level). From the pleadings, it appears that the leasing office made a mistake and failed to update the forms it was using. The statute provides for a liquidated damage of up to $10,000 for that omission.

## IV. Conclusion

The Court sustains the demurrer with leave to amend as to the second (negligence), fourth (invasion of privacy) and fifth (false advertising) causes of action; sustain the demurrer without leave to amend as to the sixth (fraud) cause of action; and overrules the demurrer as to the third (UCL) cause of action.

The Court would like to highlight a recent change in the law regarding pleading attacks set forth in Code of Civil Procedure section 430.41, subdiv. (e). Pursuant thereto, "prior to the case being at issue, a complaint shall not be amended more than three times, absent an offer to the trial court as to such additional facts to be pleaded that there is a reasonable possibility the defect can be cured to state a cause of action." Although this case was at issue on March 13, 2025, with the filing of an answer to the original complaint, Plaintiffs subsequently sought and secured leave to file an amended pleading, rendering the case no longer at issue. The request for leave was triggered by a successful Motion for Judgment on the Pleadings. Subsequently, Defendant's demurrer to the First Amended Complaint was successful. Thus, in spirit if not letter, this case is still not at issue and this Court is reviewing a third pleading attack. Accordingly, after this review, the additional requirements triggered by Code of Civil Procedure section 430.41, subdiv. (e), will apply.

Plaintiff to file an amended complaint within 20 days.

Court to give notice.